



AMBASSADOR INDEPENDENT CONTRACTOR AGREEMENT

AMBASSADOR ICA — APPROVED v2

Approved: 11 August 2026

Curiousoft (Pty) Ltd | Registration No. 2016/429327/07

APPROVAL RECORD: This is v2 of the Ambassador ICA incorporating two clauses added following Jason van der Merwe's 6 August 2026 feedback: clause 1.5 (no minimum obligation) and clause 6.8 (POPIA cross-border cloud transfer). All other clauses are unchanged from the v1 draft. Jason van der Merwe confirmed approval in writing on 11 August 2026 (email subject: "iZinga Ambassador ICA — v2 updated (two clauses added) — please confirm sign-off for production use"): "i confirm you may proceed." This document has been deployed to the iZinga onboarding platform in production as part of release v1.6.0 on 19 August 2026.

PART A: LEGAL OPINION — AMBASSADOR CLASSIFICATION

Classification: Independent Contractor

Ambassadors do **not** trigger the deeming provisions under section 200A of the Labour Relations Act 66 of 1995 or section 83A of the Basic Conditions of Employment Act 75 of 1997:

Factor (s200A LRA)	Ambassador Position
Control over manner of work	No — ambassadors choose when, where, and how they recruit
Control over hours	No — no fixed hours or targets
Forms part of the organisation	No — operates outside iZinga's internal structure
40+ hours/month average	Not structurally imposed
Economic dependence	Unlikely — R70/driver is not a wage substitute
Tools of trade provided	Partial — QR code and dashboard are facilitation tools only
Exclusivity	No — ambassadors are free to engage elsewhere

Verdict: Properly classified as independent contractors. PAYE, UIF, and SDL do not apply. Ambassadors handle their own provisional tax obligations.

Risk to monitor: If an ambassador becomes economically dependent on iZinga commissions over time, the classification could be revisited. The ICA structure mitigates this — do not impose any control that contradicts contractor independence.

Estate Agency Affairs Act: Does not apply — ambassadors recruit drivers, not parties to property transactions.

Consumer Protection Act: Not directly triggered by the ambassador referral role.

PART B: INDEPENDENT CONTRACTOR AGREEMENT

AMBASSADOR INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement ("**Agreement**") is entered into between:

iZinga, a product brand operated by **Curiousoft (Pty) Ltd**, registration number 2016/429327/07, a private company incorporated in the Republic of South Africa, with its registered address at 68 Jacaranda Avenue, Olivedale, Randburg, 2188 ("**iZinga**" or "**the Company**");

and

The person who has accepted this Agreement electronically through the iZinga onboarding platform ("**the Ambassador**").

iZinga and the Ambassador are referred to individually as "**a Party**" and collectively as "**the Parties**."

1. NATURE OF RELATIONSHIP

1.1 The Ambassador is engaged by iZinga as an independent contractor. Nothing in this Agreement creates or shall be construed to create an employment relationship, a partnership, a joint venture, a mandate to bind iZinga contractually, or any other relationship between the Parties other than that of principal and independent contractor.

1.2 The Ambassador is not an employee of iZinga for any purpose, including but not limited to the Labour Relations Act 66 of 1995, the Basic Conditions of Employment Act 75 of 1997, the Unemployment Insurance Act 63 of 2001, and the Income Tax Act 58 of 1962.

1.3 iZinga does not control the manner, method, time, place, or means by which the Ambassador performs the Services. The Ambassador is free to determine their own working hours, methods, and geographic focus without direction from iZinga.

1.4 This Agreement does not create exclusivity in favour of either Party. The Ambassador may engage in other business activities, including referral activities for third parties, provided these do not constitute a breach of clause 7 of this Agreement.

1.5 The Ambassador is under no obligation to perform any minimum quantity of services under this Agreement. iZinga is under no obligation to provide any minimum volume of referral opportunities to the Ambassador. Neither Party makes any guarantee as to the volume of activity that will arise under this Agreement.

2. SERVICES

2.1 The Ambassador agrees to promote iZinga's driver and messenger onboarding programme and to introduce prospective delivery drivers and messengers ("**Referred Drivers**") to iZinga's registration platform.

2.2 The Ambassador's services are limited to referral and promotion. The Ambassador has no authority to:

- (a) conclude any agreement on iZinga's behalf;
- (b) make representations about iZinga's commission rates, approval timelines, or earnings guarantees to prospective drivers that are not published on iZinga's official platforms;
- (c) collect any fee or payment from a prospective driver in connection with iZinga registration;
- (d) take custody of, retain, photograph, or store copies of a prospective driver's identity documents, driver's licence, proof of vehicle, or bank details outside of the driver's own registration on iZinga's platform. For the avoidance of doubt, the Ambassador may be physically present with and assist a prospective driver while that driver uploads their own documents directly into iZinga's registration platform, provided the Ambassador does not separately collect, photograph, or retain copies of those documents.

2.3 The Ambassador acknowledges that iZinga retains sole discretion to approve or decline any Referred Driver and that referral does not guarantee approval.

2.4 The Ambassador must not make any misrepresentation to a prospective driver about the nature of the driver's relationship with iZinga, earnings potential, or the approval process.

3. ATTRIBUTION AND TRACKING

3.1 Each Ambassador is assigned a unique referral identifier ("**Ambassador ID**") by iZinga. Attribution of a Referred Driver to an Ambassador is determined solely by the Ambassador ID captured in the Referred Driver's registration record at the time of registration.

3.2 iZinga's records of attribution are final and binding for the purpose of calculating Ambassador commission, absent manifest error.

3.3 The Ambassador must not manipulate, circumvent, or attempt to duplicate the attribution tracking system.

4. COMMISSION

4.1 iZinga will pay the Ambassador a commission of **R70.00 (seventy rand) per Referred Driver per payout run** in which that Referred Driver processes at least one completed delivery.

4.2 Commission is calculated and paid as part of iZinga's automated daily payout run, which runs at or around **17:00 each business day**. Payment is made to the bank account registered by the Ambassador on the iZinga onboarding platform.

4.3 Commission is earned only once a Referred Driver has been:

- (a) approved by iZinga following completion of all required onboarding steps; and
- (b) included in a payout run in which they have processed at least one completed and paid delivery.

4.4 No commission is payable for:

- (a) a Referred Driver who registers but is not approved;
- (b) a Referred Driver who is approved but processes no deliveries in a given payout run;
- (c) a Referred Driver whose account is suspended at the time of the payout run.

4.5 iZinga reserves the right to adjust the commission rate on 30 (thirty) calendar days' written notice to the Ambassador. Continued use of the Ambassador platform after the effective date of a rate change constitutes acceptance of the revised rate.

4.6 The Ambassador is responsible for all taxes, levies, and statutory contributions applicable to commission received under this Agreement, including provisional income tax. iZinga will not deduct PAYE, UIF, or SDL from commission payments. The Ambassador indemnifies iZinga against any SARS assessment, penalty, or interest arising from the Ambassador's failure to comply with their own tax obligations.

4.7 If the Ambassador is registered for VAT, the Ambassador must notify iZinga in writing and must issue a valid tax invoice for each commission payment. iZinga's commission figures in such cases will be construed as VAT-exclusive unless the Ambassador's VAT status has been confirmed and a valid tax invoice issued.

5. INTELLECTUAL PROPERTY

5.1 Any referral materials, marketing content, digital assets, QR codes, referral links, promotional copy, or other materials created by iZinga and provided to the Ambassador remain the exclusive intellectual property of iZinga.

5.2 Any referral materials created by the Ambassador in the course of performing the Services that incorporate iZinga's name, logo, trade marks, or brand elements ("**Ambassador-Created Materials**") are hereby assigned to iZinga with effect from the date of creation, to the fullest extent permitted by the Copyright Act 98 of 1978. The Ambassador waives any moral rights in such materials to the extent permitted by law.

5.3 The Ambassador may only use iZinga's brand assets in materials that:

- (a) are accurate and not misleading;
- (b) do not make representations iZinga has not authorised;
- (c) comply with iZinga's brand guidelines as published from time to time.

5.4 iZinga may require the Ambassador to remove or modify any Ambassador-Created Materials that do not comply with clause 5.3 within 48 hours of written notice.

6. DATA PROCESSING AND POPIA CONSENT

6.1 By accepting this Agreement, the Ambassador consents to iZinga processing the following personal information for the purposes set out below:

Category of Personal Information	Purpose
Full name and identity number	Verification of identity; onboarding record
Contact details (mobile number, email address)	Communication regarding this Agreement and commission payments
Bank account details	Processing commission payouts via iZinga's payment platform
Referral and commission records	Calculating and auditing commission entitlements

6.2 iZinga processes the Ambassador's personal information on the dual lawful basis of:

- (a) **contractual necessity** — processing is required to perform obligations under this Agreement; and
- (b) **consent** — the Ambassador expressly consents to the processing described in clause 6.1.

6.3 iZinga will retain the Ambassador's personal information for a period of **5 (five) years** from the date of termination of this Agreement, after which it will be deleted or anonymised, unless retention for a longer period is required by law.

6.4 The Ambassador's personal information will not be sold or disclosed to third parties except:

- (a) to iZinga's payment service providers (including but not limited to Yoco) for the purpose of processing commission payments;
- (b) as required by law or a lawful order of a court or competent authority.

6.5 The Ambassador has the right to:

- (a) request access to their personal information held by iZinga;
- (b) request correction of inaccurate personal information;
- (c) request deletion of personal information (subject to iZinga's retention obligations);
- (d) object to processing;
- (e) lodge a complaint with the Information Regulator of South Africa.

6.6 Requests under clause 6.5 may be directed to iZinga's Information Officer via the contact details published on iZinga's website.

6.7 This clause constitutes iZinga's POPIA disclosure for the purposes of section 18 of the Protection of Personal Information Act 4 of 2013.

6.8 Certain personal information provided by the Ambassador under this Agreement may be processed or stored using cloud service providers or infrastructure located outside the Republic of South Africa, including but not limited to Google LLC (operating Firebase and Google Cloud Platform), which iZinga uses for its platform infrastructure, database, and authentication services. Where such transfers of personal information outside South Africa occur, iZinga will implement the appropriate safeguards required by section 72 of the Protection of Personal Information Act 4 of 2013, including ensuring that the recipient provides a level of protection for the personal information

that is substantially similar to the protections required under POPIA.

7. CONFIDENTIALITY

7.1 The Ambassador must keep confidential all non-public information about iZinga's business, commission rates, driver approval criteria, platform technology, and partner relationships that comes to the Ambassador's knowledge in the course of performing the Services.

7.2 The confidentiality obligation in clause 7.1 survives termination of this Agreement for a period of 2 (two) years.

8. TERMINATION

8.1 **Notice termination:** Either Party may terminate this Agreement by giving 30 (thirty) calendar days' written notice to the other Party. During the notice period the Ambassador may continue to earn commission on Referred Drivers who are already registered.

8.2 **Immediate termination by iZinga:** iZinga may terminate this Agreement immediately and without notice if the Ambassador:

- (a) makes a misrepresentation to a prospective driver;
- (b) charges or attempts to charge a prospective driver any fee in connection with iZinga registration;
- (c) manipulates the attribution tracking system;
- (d) uses iZinga's brand assets in a manner that violates clause 5.3;
- (e) brings iZinga into disrepute;
- (f) is found to have engaged in fraudulent conduct.

8.3 **Effect of termination:** On termination:

- (a) the Ambassador's access to the iZinga Ambassador dashboard will be suspended;
 - (b) all Ambassador-Created Materials must be removed from the Ambassador's channels within 7 (seven) calendar days;
 - (c) commission accrued and payable for payout runs completed before the termination date will be paid in the next scheduled payout run after the effective date of termination;
 - (d) no further commission will accrue after the termination date, including for Referred Drivers who are still in the approval pipeline at that date.
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9. LIABILITY

9.1 iZinga's total liability to the Ambassador under or in connection with this Agreement is limited to the commission earned but unpaid at the date of the relevant claim.

9.2 iZinga is not liable for any loss of anticipated commission, indirect loss, loss of profits, or consequential loss arising from the termination of this Agreement or any change to the commission structure.

9.3 The Ambassador indemnifies iZinga against any loss, claim, penalty, or expense arising from:

- (a) any misrepresentation made by the Ambassador to a prospective driver;
 - (b) the Ambassador's failure to comply with applicable law in the performance of the Services;
 - (c) the Ambassador's tax obligations under clause 4.6.
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10. DISPUTE RESOLUTION

10.1 The Parties will attempt to resolve any dispute arising from this Agreement through good-faith negotiation within 14 (fourteen) calendar days of written notice of the dispute.

10.2 If the dispute is not resolved through negotiation, either Party may refer the dispute to expedited arbitration administered by the **Arbitration Foundation of Southern Africa (AFSA)** under AFSA's rules, with a single arbitrator, conducted in English, in Johannesburg or Durban (at iZinga's election).

10.3 The arbitrator's award is final and binding and may be made an order of the High Court of South Africa.

10.4 Nothing in this clause prevents either Party from approaching a court of competent jurisdiction for urgent relief.

10.5 Nothing in this Agreement limits any rights the Ambassador may have under the Consumer Protection Act 68 of 2008 that cannot be contractually excluded.

11. GENERAL

11.1 **Governing law:** This Agreement is governed by the laws of the Republic of South Africa.

11.2 **Jurisdiction:** The Parties submit to the non-exclusive jurisdiction of the High Court of South Africa, Gauteng Division (Johannesburg), for any proceedings not referred to arbitration under clause 10.

11.3 **Entire agreement:** This Agreement constitutes the entire agreement between the Parties regarding the Ambassador arrangement and supersedes all prior representations or understandings. No oral variation is binding.

11.4 **Amendment:** iZinga may amend this Agreement on 30 (thirty) calendar days' written notice (which may include notice via the Ambassador dashboard or by email). Continued use of the Ambassador platform after the effective date constitutes acceptance of the amended terms.

11.5 Electronic acceptance: This Agreement is concluded electronically when the Ambassador clicks the acceptance button during onboarding registration. Electronic acceptance constitutes a valid and binding signature for the purposes of the Electronic Communications and Transactions Act 25 of 2002. iZinga must retain a time-stamped record of each Ambassador's acceptance.

11.6 Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions remain in full force.

11.7 No waiver: Failure by iZinga to enforce any provision of this Agreement does not constitute a waiver of that provision.

Accepted electronically by the Ambassador via the iZinga onboarding platform.

iZinga — operated by Curiousoft (Pty) Ltd | Registration No. 2016/429327/07

Curiousoft (Pty) Ltd t/a iZinga processes personal information in accordance with the Protection of Personal Information Act 4 of 2013 (POPIA). For queries contact: privacy@izinga.co.za